

GUARDIANSHIP OF AMARA & JOEL CICEU-CERVANTES

CASE NUMBER: 26PG-0033207

Disclosure Re: guardianship cases involving Shasta County Health and Human Services Agency-Judge Wood discloses that her step-daughter, Erinn Watts, is the Administrative Branch Director of the Health and Human Services Agency. In that position, Judge Wood's step-daughter does not have any involvement in the investigation, management, prosecution or defense of guardianship cases. However, the Court makes this disclosure of an employment relationship between an investigating agency and the Court's first degree relative as required by California Code of Judicial Ethics.

This matter is on calendar for further proceedings on a Petition for Appointment of Guardian of the Persons filed by the minors' non-relative caregivers Aaron and Jessica Souza. Letters of Temporary Guardianship issued on January 12, 2026. The Court after conducting a hearing on the issue, previously **ORDERED** the Temporary Guardianship to remain in effect pending the hearing on the Petition in light of the Children's Services safety plan and the detriment to the minors that would be caused from multiple separations or loss of primary caregivers.

The Court previously determined the Souza Petition had been properly noticed. ICWA notification has been properly given and a request to intervene was received from the Mechoopda Indian Tribe. The Tribe filed an objection seeking family placement with paternal aunt, Jenny Adkins. Jenny Adkins has filed an objection. The mother filed an objection; however, the mother and father subsequently withdrew any objection and both filed a nomination of the Souza's as guardians. The mother has filed a declaration in support of the Souza Petition and expressing objections to the Tribe's proposed guardian.

The Court previously noted that the minors' great aunt, Jenny Adkins, also filed a Petition for Appointment of Guardian of the Persons. A Notice of Hearing has still not been file and served to bring the matter properly before the Court despite this matter having been continued multiple times. In light to the failure to take any action on the Petition, Ms. Adkin's Petition is DENIED.

Jennifer Tescher has been appointed as counsel for the mother. Melissa Fanoë has been appointed as counsel for the father. Both Attorneys Tescher and Fanoë have confirmed their appointment. At the last hearing, Attorney Kristin Anderson was appointed as counsel for the minors and confirmed appointment. The Court previously made a referral to Children's Services and the Tribe previously filed applications to commence juvenile court proceedings on June 23, 2026. The Court has reviewed the memorandum from Children's Services filed on July 14, 2026, which indicates that they will not be commencing juvenile proceedings at this time and Children's Services continues to recommend placement of the minors with the Temporary Guardians.

An appearance is necessary on today's calendar to set a contested hearing date only. Petitioners are reminded that an Indian expert's testimony will be required. See *Welfare and Institutions Code section 224.6* and www.courts.ca.gov/8105.htm. Additionally, in light of the Court's prior expressed concerns (based upon the Court's judicial education and training) the Court expects that expert testimony will be presented regarding any detriment, or lack thereof, to the minors' mental/emotional well-being as it relates to attachment disorders in 18-48 month-olds. The Court identifies this issue so that the parties/counsel will be prepared to address this issue at the time of the contested hearing.